

26VECV03401 26VECV03401

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Case Number: 26VECV03401 Hearing Date: August 20, 2026 Dept: T

26VECV03401 VALIENTE V

JAGUAR

[TENTATIVE] ORDER: Defendant

Jaguar Land Rover North America, LLC's Motion to Strike Portions of the Complaint is GRANTED WITH 10 DAYS LEAVE TO AMEND. Leave to amend is limited to curing the pleading defect identified below and not to add new causes of action or new parties.

Introduction

Defendant Jaguar Land Rover North

America, LLC (Defendant) moved to strike Plaintiffs Laniza Valiente and Ernesto Valiente (collectively, Plaintiffs) request for civil penalties under Civil Code, section 1794(c) and made in the first, second, and third causes of action (COA) and in the prayer.

Discussion

A consumer, at least 30 days prior to commencing an action seeking civil penalties under Civil Code section 1794(c), is required to provide written notice to the manufacturer to allow the manufacturer an opportunity to repurchase or replace the vehicle. (Code Civ. Proc. sec. 871.24(a).) A review of the allegations in the Complaint show that Plaintiff failed to allege any facts to show compliance with the statutory notice procedure/condition for seeking civil penalties and Defendant's argument is persuasive.

Plaintiff argued that the

statutory notice requirement is not a pleading element for the three COAs at issue. However, Plaintiff failed to present any case law to support the contention that the notice requirement is not a pleading requirement. Further, a plain reading of subdivision (a) shows that the notice requirement is mandatory to support a consumer's request for civil penalties because the subdivision used the word "shall". Although the statute may not expressly be a pleading element found in the Song-Beverly Consumer Warranty Act, the statute is still interpreted by this Court as a pleading element because a claim for civil penalties without providing pre-claim notice makes the request for civil penalties invalid. Further, the statute expressly provides the remedies allowed when Plaintiff did not comply with the notice provision in subdivision (a). Without compliance with the notice provision in subdivision (a), Plaintiff is limited to two remedies: restitution or replacement. The limitations of remedies when the consumer does not give notice is mandatory, again, because the subdivision uses the word, "shall". (Sec. 871.24(h).) The subdivision further expressly provides that a consumer may seek restitution or replacement, including civil penalties, when the consumer complied with the notice provision and the manufacturer failed to comply with their obligations under subdivision (e). (Id.) A reading of the entire statute shows that compliance with the notice provision can be interpreted as a pleading element.

Plaintiff argued that the pre-claim notice is inapplicable because the claims in the Complaint are excluded per Section 871.20(b). Plaintiff asserted that the pre-claim notice is inapplicable because the Complaint seeks remedies above and beyond just restitution or replacement. Plaintiff submitted that the Complaint requested remedies for actual, incidental, and consequential damages and the Prayer separately demands incidental and consequential damages, actual and statutory damages, and prejudgment interest and the breach of warranty COAs seek diminished value damages. However, the Court does not agree with Plaintiff's interpretation of the statute. Plaintiff's interpretation of the statute would negate the application of the statute to virtually all Lemon Law cases. The Court finds Plaintiff's interpretation of the statute and subdivision (b) to be too restrictive because subdivision (a) expressly states that the chapter applies to claims for

“restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2 [of the Civil Code]” and claims for “civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code”. Plaintiff’s Complaint expressly requested remedies under these subdivisions of the Civil Code, as seen in the first, second, and third COAs, as identified by Defendant. The Court does not interpret the two subdivisions of the statute to mean that adding requests for remedies above and beyond restitution, replacement, and civil penalties makes the exclusion under subdivision (b) applicable. At most, the Court interprets the exclusion to mean that the requirements in the chapter are inapplicable to Plaintiff’s specific claims for actual, incidental, consequential damages, and prejudgment interest, and diminished value damages. But because restitution, replacement, and civil penalties were included in the Complaint, the Court finds the exclusion in Section 871.20(b) to be inapplicable. The Court does not find Plaintiff’s argument as to Section 871.20(b) to be persuasive.

Plaintiff argued that a manufacturer’s statutory obligation to repurchase or replace a nonconforming vehicle under Civil Code, Section 1793.2(d)(2) is self-executing and does not require pre-claim notice. However, the argument is, again, a restrictive interpretation of the statute. With the new statutory requirements in Section 871.24, the obligation to repurchase/replace is now contingent upon a consumer’s pre-claim demand. Until courts with appellate jurisdiction opine otherwise, the Court interprets the two statutes to include a pre-claim notice requirement when there is a claim for civil penalties.

Defendant lastly argued that pleading the pre-claim notice is required because civil penalties are akin to punitive damages. However, the Court agrees with Defendant that Plaintiff is required to plead compliance with the pre-claim notice to sufficiently plead a claim for civil penalties. The arguments analogizing the instant issue with pleading punitive damages are moot and not considered.

It is also noted that Section 871.24 also requires Plaintiff to have possession of the vehicle when the pre-claim notice is sent and 30 days after the manufacturer’s receipt of the notice. (Section 871.24(c) and (g).) The Court noted that Plaintiff also failed to plead facts to allege Plaintiff’s possession of the vehicle. For this pleading defect, the claim for civil penalties is additionally found to be irrelevant, false, or improper.

Plaintiff requested leave to
amend but failed to present any additional facts to show that Plaintiff
complied with the pre-claim notice or possession of the vehicle. Because Plaintiff failed to present facts to
show that the pleading defect is curable, good cause exists to deny leave to
amend. However, because this is the
Court's first review of the pleading, the Court grants leave to amend to cure
the pleading defect as to civil penalties.

The motion to strike is GRANTED
WITH LEAVE TO AMEND.

IT IS SO ORDERED, CLERK TO GIVE NOTICE